

SCHEDULE (C.)

SCHED. (C.)

Number of Vote.	NAVY SERVICES, 1916-17. VOTES.	Actual Receipts compared with Estimated Appropriations in Aid.	
		Surpluses.	Deficits.
1	Wages, &c., of Officers, Seamen, and Boys, Coast-guard, and Royal Marines	£ s. d.	£ s. d.
2 to 15	Other Navy Votes - - -	14,968,323 11 0	16,874,302 11 7
	Net Deficit - - -	£1,905,975 0 7	

Navy Services.
Section 6.

Number of Vote.	ARMY SERVICES, 1916-17. VOTES.	Actual Receipts compared with Estimated Appropriations in Aid.	
		Surpluses.	Deficits.
1	Pay, &c., of the Army -	£ s. d.	£ s. d.
3	Special Reserve - -	—	17,570,250 14 5
15	Civil Superannuation, Compensation, and Gratuities	—	100 0 0
2 and 4 to 14.	Other Army Votes - - -	19,635,811 16 10	69 15 9
	Add Surplus Appropriations in Aid not appropriated by Parliament	—	—
	Net Excess Receipts -	19,635,811 16 10	10 0 0
		£2,065,381 6 8	

Army Services.

CHAPTER 57.

An Act to make provision for the better administration of the enactments relating to Naval, Military, and Air Force War Pensions, Grants, and Allowances, and for certain other purposes connected with such pensions, grants, and allowances. [21st November 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) The administrative expenses of any local or joint committee (including the expenses of any sub-committee thereof), to an amount approved by the Minister, shall, instead of being

Administrative expenses of committees.
7 & 8 Geo. 5.
c. 14.

defrayed in manner provided by section one of the Naval and Military War Pensions, &c. (Administrative Expenses) Act, 1917 (hereinafter referred to as "the Administrative Expenses Act"), be as from the first day of January, nineteen hundred and nineteen, defrayed out of moneys provided by Parliament.

(2) Every local committee and every joint committee shall submit for the approval of the Minister an estimate of the administrative expenses proposed to be incurred by the committee for any prescribed period, and may from time to time submit to him supplementary estimates.

The Minister shall consider all estimates submitted to him for his approval under this section, and shall, if and so far as he considers any such estimate reasonable, approve the estimate.

(3) For the purposes of the provisions of this section the administrative expenses of a local or joint committee shall include travelling expenses and compensation for loss of remunerative time in the case of members of the committee or any sub-committee thereof calculated in accordance with regulations made by the Minister subject to the approval of the Treasury.

Power of
Minister with
respect to
framing of
schemes,
appointment,
suspension, &c.
of committees.
5 & 6 Geo. 5.
c. 83.

2.—(1) For the purpose of securing the proper exercise and performance in any area of the powers and duties assigned to local committees by the Naval and Military War Pensions, &c., Act, 1915 (hereinafter referred to as "the principal Act"), the Minister may by order do any of the following things:—

- (a) Require the council of any county or borough or urban district to frame a supplemental scheme to be approved by him for giving effect to any recommendation with respect to the amendment or modification of any scheme regulating the constitution of a committee, and in particular (without prejudice to the generality of the foregoing provision) as respects the council of a county for giving effect to any recommendation with respect to the division of the county into districts and the appointment of sub-committees for the districts:
- (b) Require a local committee to appoint sub-committees for any special parts of their area:
- (c) Require two or more local committees to appoint a joint committee, and determine the powers and duties which are to be delegated to any joint committee:
- (d) Provide, by the amalgamation of existing committees or otherwise, for the establishment of a single committee to act for any two or more of the areas for which committees are required to be or may be established under the principal Act, or for an area consisting of any such area or areas and any part of any such area or areas:
- (e) Exercise the power of appointing members of any committee in the case of failure by the council of any

county, borough, or district, or by any other body or person, to exercise the power :

- (f) Where he is satisfied, after holding a public local inquiry, that any committee has been negligent in the exercise of its powers, or has made default in the performance of its duties, under the principal Act, suspend the committee for such time as may be specified in the order from the exercise of its functions or from the exercise of such of its functions as are specified in the order, or declare that the existing members of the committee have vacated their office :
- (g) Where he is satisfied that any member of a committee is habitually absent from meetings of the committee, or where a committee represent to him that it is desirable with a view to securing the efficient discharge of the committee's functions that some member of the committee should cease to be a member, declare that the member has vacated his office.

The Minister shall not make an order under any of the first five paragraphs of this subsection except after consultation with the councils or committees concerned.

(2) Any order made under this section may contain such supplemental and consequential provisions (including modifications and amendments of the principal Act or any Act amending that Act) as may be necessary for the purpose of giving full effect to the order, and in particular in the case of an order providing for the suspension of a committee may contain provisions for authorising any persons to exercise in the place of the committee, while it is so suspended or pending the appointment of a new committee, the functions of the committee or such of those functions as are specified in the order or for the appointment of new members of the committee, as the case may be.

Where an order made under this section contains provisions modifying or amending any statutory enactment, the order shall be laid before each House of Parliament forthwith, and if either of those Houses within the next subsequent twenty-one days on which that House has sat next after the order is laid before it presents an Address to His Majesty against any of the modifications or amendments, His Majesty in Council may annul the order so far as it relates to the modifications or amendments against which the Address is presented, but without prejudice to the validity of anything previously done under the order.

(3) If in any case where the Minister has made an order under this section any council, committee, or other body, does not within such time, not being less than one month, as may be specified in the order, comply with the requirements of the order, the Minister may himself exercise in the place of the defaulting council, committee, or body the powers vested in

the council, committee, or body in relation to the matter with respect to which it has made default.

Amendment of
s. 1 (2) of
7 & 8 Geo. 5.
c. 14.

3.—(1) Where a council has failed to discharge in due course any of its functions under subsection (2) of section one of the Administrative Expenses Act, the Minister may by order declaring that the council has so failed appoint some person to discharge those functions in the place of the council, and the person so appointed shall by virtue of the order have power to discharge those functions accordingly.

(2) A declaration contained in any such order to the effect that a council has so failed shall be conclusive evidence of the fact.

Power of
Minister to
appoint
additional
members of
committee

4. Notwithstanding anything in the principal Act or in any scheme made under that Act, the Minister may appoint such persons as he thinks fit to be additional members of a committee, so, however, that the additional members appointed by the Minister shall not be officials of the Ministry nor at any time exceed one-tenth of the total number of the members (including additional members) of the committee, and that the Minister in making appointments shall have regard to the desirability of preserving the representative character of the committee.

Power to make
regulations as
to proceed-
ings of com-
mittees, &c.

5.—(1) The Minister may make general regulations for any of the following purposes:—

(a) For determining what classes of officers are required by committees for the proper discharge of their functions, and defining the general duties of the officers of committees and the general conditions under which officers may be appointed or removed by committees, and regulating the remuneration of such officers, and the provision of offices by committees:

Provided that the regulations shall provide that in all appointments of officers of committees preference shall be given to suitable candidates who have served in the naval, military, or air forces, or to the dependents of men who have so served:

(b) For authorising the attendance of officers of the Ministry at meetings of committees, and for providing that the records of committees shall be accessible to officers of the Ministry:

(c) For enabling officers of the Ministry on the directions of the Minister to hold local inquiries with respect to any matters the administration of which is vested in the Minister, and for the purpose of any such inquiries to summon and examine witnesses on oath:

(d) For prescribing the times at which, the manner in which, and the period for which, estimates of administrative expenses are to be submitted by committees:

(e) For regulating the constitution of sub-committees appointed by committees for any special parts of their areas:

- (f) For prescribing the form in which the accounts of committees are to be kept, and providing for the audit of such accounts (including the disallowance of any items of expenditure in such accounts irregularly or unreasonably incurred, the surcharging of any items disallowed, and the recovery or remission at the discretion of the Minister of any amount surcharged) :
- (g) For prescribing anything which under this Act is to be prescribed, and generally for carrying into effect the provisions of the principal Act ;

and it shall be the duty of committees and their officers to comply with any regulations made under this section, so far as they are affected thereby.

(2) Every regulation under this Act shall be laid before each House of Parliament forthwith, and if an address is presented to His Majesty by either House within the next subsequent twenty-one days on which that House has sat next after any such regulation is laid before it, praying that the regulation may be annulled, His Majesty in Council may annul the regulation, and it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder.

6.—(1) Every committee shall prepare rules for regulating their proceedings (including quorum, time and place of meeting, records, and the exercise generally of their powers and duties), and shall submit the rules for the approval of the Minister. Rules of committees

If within such time as the Minister may allow a committee does not prepare rules, or such rules as the Minister approves, the Minister may himself make rules for the committee, which shall have the like effect as though they were prepared by the committee and approved by the Minister.

(2) For the purpose of facilitating the preparation of rules the Minister shall prepare and issue a form of model rules.

7.—(1) Paragraph 1 of the First Schedule to the Patriotic Fund Reorganisation Act, 1903 (which relates to the constitution of the Royal Patriotic Fund Corporation), shall have effect as though there were added at the end thereof the following words: Representation of Ministry of Pensions on Royal Patriotic Fund Corporation.
3 Edw. 7. c. 20

“(g) Two members appointed on the recommendation of the Minister of Pensions by His Majesty by warrant under the Sign Manual.”

The two members to be appointed under the said paragraph 1 as amended by this section shall hold office for a term of three years but shall be eligible for re appointment, and where any vacancy occurs in the office of any member so appointed, any person appointed to fill the vacancy shall hold office for three years.

(2) The two members to be so appointed as aforesaid shall be members of the executive committee of the said Corporation,

and paragraph 6 of the said First Schedule shall have effect as though "twenty-two members" were therein substituted for "twenty members."

Amendment as to constitution of special grants committee.
7 & 8 Geo. 5.
c. 37.

8.—(1) Fifteen shall be substituted for twelve as the maximum number of the members of the special grants committee for the constitution of which provision is made by section two of the Naval and Military War Pensions, &c. (Transfer of Powers) Act, 1917.

(2) The Minister may make regulations with respect to the following matters :—

(a) The term of office, not being less than three years, of members of the special grants committee :

(b) The appointment of persons to fill casual or other vacancies on the committee.

(3) If it is represented to the Minister by the special grants committee that any member of the committee is habitually absent from the meetings of the committee, the Minister may declare that that person has vacated his office as a member of the committee.

(4) A person who has vacated office as a member of the special grants committee shall be eligible for re-appointment.

(5) If any persons belonging to the staff of the Ministry are assigned to the service of the special grants committee the person so assigned shall as regards that service, but not otherwise, be subject to the directions of the committee.

Duty of Minister to provide for care of neglected children of men dead or on service.

9.—(1) It shall be the duty of the Minister to make provision for the care of any children (including illegitimate children), being the children of officers or men in the naval, military, or air service of His Majesty who have died from causes arising out of their service during the present war or who are on active service, who by reason of their mothers being dead or for any other reason are suffering from neglect or want of proper care, and the Minister may out of any funds at his disposal for the purpose make grants for the purpose of making such provision as aforesaid.

(2) The Minister may, subject to such conditions as he thinks fit, provide for the performance by the special grants committee and other committees of his duty under this section.

(3) Any question which may arise with respect to the amount of any grant to be made under this section shall, if the Minister so directs, be referred to and determined by the special grants committee.

(4) Any child for the care of whom it is the duty of the Minister under this section to make provision may be committed to the care of the Minister by an order made under section twenty-one of the Children Act, 1908, as if the Minister were named in that section as a person to whose care a child or young person may be committed.

(5) For the purposes of this section a child means any child to, or in respect of, whom a pension, allowance, or separation allowance is payable.

(6) The Minister, or where the duty of the Minister under this section is being performed by a committee the committee, shall in any case in which it is proposed in pursuance of the provisions of this section to place any child in any institution or under the care of any person endeavour to ascertain the religious denomination to which the child belongs, and no child shall be placed in an institution or under the care of a person not belonging to the same religious denomination as the child unless the persons having the management of the institution or the person under whose care the child is to be placed, as the case may be, give or gives such undertaking as seems to the Minister or the committee sufficient that the child shall be brought up in accordance with its own religious persuasion.

Where such an undertaking as aforesaid given by the persons having the management of any institution or by any person is not observed the Minister or committee, as the case may be, shall as soon as may be remove the child from the institution or from the care of that person.

10. Notwithstanding anything in any Act, a disabled man who has been discharged from the service and is in receipt of a disablement pension shall not be required to apply any part of that pension towards the relief and maintenance of a person not being his wife or child, and in granting relief to any person, other than a wife or child, whom any such disabled person is bound to maintain, the board of guardians shall not take into account any part of any such pension.

Pensions in certain cases not to be taken into account for purposes of poor law relief.

In this section the expression "disablement pension" means a pension other than a pension calculated on the basis of the earnings of the pensioner before the war.

11. Any local committee established by virtue of the provisions of section three of the Administrative Expenses Act for a borough or urban district shall, if the Minister, after consultation with the local committee for the county, so directs, exercise the functions of a local committee set forth in paragraph (f) of section four of the principal Act, but unless the Minister so directs, those functions shall continue to be exercised as respects the borough or urban district by the local committee for the county in which the borough or urban district is situate, except so far as those functions may be delegated by the local committee of the county to the local committee of the borough or urban district.

Amendment of s. 3 of 7 & 8 Geo. 5. c. 14.

12. Section one of the Naval and Military War Pensions, &c. (Committees) Act, 1917 (which provides for the inclusion of disabled men among the members of committees), shall have effect as though for the words "naval or military service,"

Inclusion of airmen on committees. 7 & 8 Geo. 5. c. 54.

wherever those words occur, there were substituted the words "naval, military, or air service," and any references in the provisions of any scheme which relate to the inclusion among the members of a committee of men discharged from the naval or military service or of the widow or other dependent of a man in the naval or military service to the naval or military service shall be construed as including a reference to the air service, and the scheme shall have effect accordingly.

Power to take possession of land.

5 & 6 Geo. 5. c. 8.

13. The power of making regulations under the Defence of the Realm (Consolidation) Act, 1914, as amended by any subsequent enactment, shall include power to make regulations authorising the Commissioners of Works to take possession of any land (including any buildings thereon) which the Minister may certify to be required for the purpose of accommodating the staff of the Ministry or of otherwise carrying into effect the principal Act.

Power of Minister to require information for purpose of determining pre-war earnings.

14.—(1) Where it is necessary, in order to determine the amount of any pension, grant or allowance to be awarded under any Order in Council or Royal Warrant to or in respect of a disabled person, to ascertain the pre-war earnings as defined by the order or warrant of that person, it shall be the duty of any person who was an employer of the disabled person during the period in respect of which the pre-war earnings of the disabled person are to be ascertained, and of any other person having any knowledge with respect to the financial circumstances of the disabled man during that period, on being so required by notice issued by or under the directions of the Minister, to furnish in accordance with the directions of the notice any information in his possession relating to those earnings or circumstances, and to produce to the person so specified any wages-books, records, or other documents in his possession containing any entries with respect to those earnings.

(2) If any person fails to comply with the provisions of this section, or furnishes any information which is false or calculated to deceive, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

Amendment of 7 & 8 Geo. 5. c. 54, as to minimum number of disabled men to be included among members of committees.

15. For the purpose of securing the adequate representation of disabled men on committees the Minister may by order direct that such number as may be specified in the order shall as respects any committee be substituted for two as the minimum number of disabled men who are to be included in committees under subsection (1) and subsection (3) of section one of the Naval and Military War Pensions, &c. (Committees) Act, 1917, and where any such order is made that Act shall have effect accordingly.

Power to defray expenses in connection with associa-

16. In the event of the formation of a local war pensions committees association having objects and a constitution approved by the Minister, a local committee may pay as part

of its administrative expenses such sum as may be prescribed, not exceeding five pounds, as a contribution towards the expenses of such association and also, up to an amount approved by the Minister, the expenses of the attendance of representatives of the committee at meetings of the association.

tion of committees.

17. In the application of this Act to Scotland the expression "board of guardians" means "parish council."

Application to Scotland.

18.—(1) This Act may be cited as the War Pensions (Administrative Provisions) Act, 1918, and the Naval and Military War Pensions, &c. Acts, 1915 to 1917, the Naval and Military War Pensions, &c. (Transfer of Powers) Act, 1917, the Naval and Military War Pensions, &c. (Committees) Act, 1917, and this Act may be cited together as the War Pensions Acts, 1915 to 1918.

Short title, interpretation, and repeal.

(2) In this Act, unless the context otherwise requires—

The expression "prescribed" means prescribed by regulations made under this Act;

The expression "Minister" means the Minister of Pensions, and the expression "Ministry" means Ministry of Pensions;

The expression "pension" does not include a service pension;

The expression "committee" means any committee established or appointed under the principal Act, including a sub-committee, and the expression "sub-committee" includes a district committee.

(3) This Act shall be construed as one with the principal Act, and, unless the context otherwise requires, any references in this Act to the principal Act, or to any provision of the principal Act which has been amended by any other enactment or is amended by this Act, shall be construed as references to the principal Act or that provision as amended by any other enactment or by this Act.

(4) The enactments mentioned in the Schedule to this Act are, except so far as relates to the administrative expenses of committees incurred before the first day of January, nineteen hundred and nineteen, hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULE.

Section 18(4).

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
7 & 8 Geo. 5. c. 14.	The Naval and Military War Pensions, &c. (Administrative Expenses) Act, 1917.	Section one; section three from "so however" to the end of the section; in subsection (1) of section eight the words "Local Government Board means the Secretary for Scotland"; subsection (2) of section eight and section nine.

CHAPTER 58.

An Act to authorise the taking possession of premises required, in connection with schemes of demobilisation, for Employment Exchanges and other purposes of the Ministry of Labour. [21st November 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to take possession of premises for employment exchanges.
5 & 6 Geo. 5.
c. 8.

1. The power of making regulations under the Defence of the Realm Consolidation Act, 1914, as amended by any subsequent enactment, shall include power to make regulations authorising the Commissioners of Works, or, as respects Ireland, the Commissioners of Public Works in Ireland, with the consent of the Treasury, to take possession of any land, including buildings thereon, which the Minister of Labour may certify to be required, in connection with any scheme of demobilisation, for the purposes of employment exchanges or the accommodation of the staff of any department of the Ministry constituted for reinstating in civil life persons who, during the present war, have been serving in His Majesty's forces or otherwise engaged in work of national importance.

Short title

2. This Act may be cited as the Defence of the Realm (Employment Exchanges) Act, 1918.